

WashOut Pro Terms and Conditions Agreement

Effective Date: September 5, 2025

This Terms and Conditions Agreement (“Agreement”) is entered into by and between WashOut Pro, LLC (“WashOut Pro,” “we,” or “our”) and each rock crushing yard operator (“Owner,” “you,” or “your”).

By clicking “I Agree,” enrolling in, and using the WashOut Pro system, you acknowledge that you have read, understood, and agree to be bound by the following terms:

1. Subscription and Account

1.1 Subscription Fee: Each published location is subject to a monthly subscription fee as communicated to you by WashOut Pro.

1.2 Payment Method: You must provide and maintain a valid payment method (credit account, ACH, or linked bank account) for automatic withdrawals. Subscription fees will be billed monthly.

1.3 Authorization: By agreeing to this Agreement, you authorize WashOut Pro to automatically withdraw subscription fees, service charges, and other applicable fees from your designated account.

2. Payments to Drivers

2.1 Payment Obligation: Owners are responsible for compensating participating concrete truck drivers for washout services in the minimum amount of **\$10.00 per washout** (or higher, as determined by you within the app).

2.2 Payment Schedule: Payments to drivers will be processed on a weekly basis.

2.3 Service Fee: For each payment made to a driver, WashOut Pro will assess a **10% service charge to the Owner**, billed in addition to the driver’s compensation. Drivers shall receive the full washout payment without any deduction for service fees.

Example: If a driver is paid \$10.00, the Owner will be billed \$11.00 (\$10.00 driver payment + \$1.00 service fee).

2.4 Washout Verification: Washouts will vary in size and content. Drivers are required to upload a clear photo of the actual washout for verification. Owners will be provided this photo for approval.

a. **Approval Requirement:** Unless the driver fails to provide a photo, or provides a photo unrelated to the actual washout, Owners must approve the washout.

b. **No Other Grounds for Rejection:** Washouts cannot be rejected based on size, volume, or other subjective factors.

c. **Improper Rejection:** If an Owner rejects a washout for reasons other than those listed above, WashOut Pro reserves the right to automatically override the rejection, approve the washout, and process the payment on the Owner's behalf.

3. System Participation

3.1 **Eligibility:** Only approved owners with active accounts may use the WashOut Pro platform.

3.2 **Compliance:** Owners agree to comply with all applicable laws, safety standards, and environmental regulations related to washout services.

3.3 **Account Suspension:** WashOut Pro reserves the right to suspend or terminate access to the system for non-payment, misuse, or violation of this Agreement.

4. Disclaimers and Liability

4.1 **Independent Contractors:** Drivers participating in WashOut Pro are independent contractors, not employees, agents, or representatives of WashOut Pro.

4.2 **Limitation of Liability:** WashOut Pro is not responsible for disputes, damages, or claims arising out of washout services performed by drivers.

4.3 **Indemnification:** You agree to indemnify and hold harmless WashOut Pro, its affiliates, and representatives from any claims, damages, or expenses resulting from your participation in the system.

5. Termination

5.1 **By Owner:** You may terminate your participation at any time by providing thirty (30) days written notice to WashOut Pro.

5.2 **By WashOut Pro:** WashOut Pro may terminate this Agreement immediately for failure to pay, fraudulent activity, or material breach of terms.

6. Miscellaneous

6.1 **Governing Law:** This Agreement shall be governed by the laws of the state of [Insert State].

6.2 **Entire Agreement:** This Agreement constitutes the full understanding between the parties and supersedes any prior agreements.

6.3 **Amendments:** WashOut Pro may update these Terms and Conditions with notice to participating Owners. Continued use of the system constitutes acceptance of updated terms.